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No.

14 - Irish Rover Entertainment, LLC, et al. v. Boren, Osher & Luftman, LLP,
et al.

Petition to Vacate Arbitrate Award

In

this legal malpractice action, Petitioners Irish Rover Entertainment, LLC ("IRE") and Jeffrey Kennedy move to vacate the arbitration award entered against them. Respondents Robins Kaplan LLP, Patrick Arenz and Michael A. Geibelson (collectively, "RK") and Borens, Osher & Luftman, LLP, Stephen Z. Boren and Jeremy J. Osher (collectively, "BOL") oppose the instant petition and each cross-petition to confirm the arbitration award. IRE filed a reply brief.

As

an initial matter, the Court acknowledges there was a dispute regarding whether IRE should have the opportunity to file a reply brief. While a reply brief filed in connection to a petition to vacate an arbitration award is not expressly allowed under statute, it is not technically prohibited. (See CCP § 1285.2.) Parties routinely file a reply brief in this context because the filing of the petition is treated as an ordinary law-and-motion procedure. (See CCP § 1290.2 ["A petition under this title shall be heard in a summary way in the manner and upon the notice provided by law for the making and hearing of motions."].) Therefore, at the Court's June 9, 2026 hearing on Petitioners' ex parte application, the Court authorized a reply brief on the condition that it solely address new issues raised in the opposition briefs, specifically Respondents' respective requests to confirm the arbitration award. In their reply, Petitioners repeated the same arguments raised in their petition, but framed them as bases

to deny Respondents' cross-petitions to confirm. As such, the Reply was permitted but was superfluous.

Vacate

Arbitration Award

Code of Civil Procedure section 1286 provides, "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceedings."

Courts have limited authority to vacate an arbitration award. "A court's power to correct or vacate an erroneous arbitration award is closely circumscribed." (Heimlich v. Shivji (2019) 7 Cal.5th 350, 367.) "An arbitrator's legal or factual error in determining which party prevailed may not be reversed." (Ibid.) "It is within the power of the arbitrator to make a mistake either legally or factually. When parties opt for the forum of arbitration they agree to be bound by the decision of that forum knowing that arbitrators, like judges, are fallible." (Id. at p. 370, internal quotes and alterations omitted.)

IRE argues the award should be vacated on four separate grounds. The Court will address each in turn.

1. Failure to Disclose Ground for Disqualification – CCP § 1286.2(a)(6)

First,

Petitioners argue the arbitrator failed to timely disclose a ground for her disqualification, and disqualify herself as required under statute. (CCP § 1286.2(a)(6).)

Specifically,

Petitioners contend the arbitrator did not disclose that her real estate entity, Horton Hill, LLC, reported more than \$100,000 in gross income during 2018–2020 and identified individuals connected to the subject matter of the underlying copyright litigation as reportable sources of income on publicly filed Form 700 records. (Pet. To Vacate, at pp. 4, 10.) They argue this triggered the arbitrator's continuing statutory duty to disclose under section

1281.9 and that, after IRE demanded disqualification under sections 1281.9 and 1281.91 and JAMS Rule 15, she declined to step aside. (Id., at p. 12.)

Petitioners emphasize that they need not prove actual bias or any prejudice beyond denial of the statutory right to a fully informed choice of neutral. (Ibid.) Specifically, Petitioners explain that the subject persons were connected to a talent agency that, in turn, represented individuals involved with the production of the underlying copyright matter, the resolution of which formed the basis for the instant legal malpractice claims. (Kennedy Decl., ¶¶ 18-20.) Petitioners concede the subject individuals were not parties to the arbitration, framing the question as whether a reasonable person aware of the undisclosed financial relationship might doubt the arbitrator's impartiality. (Id., at p. 13.)

An

arbitrator must disclose "all matters that could cause a person aware of the facts to reasonably entertain a doubt that the proposed neutral arbitrator would be able to be impartial." (CCP § 1281.9(a).) The test is objective, and is not based on a party's subjective view of the situation. (Haworth v. Superior Court (2010) 50 Cal.App.4th 372, 385-386 ["The applicable rule provides an objective test by focusing on a hypothetical reasonable person's perception of bias. ... The question here is how an objective, reasonable person would view [the neutral's] ability to be impartial."].)

IRE

raised this disqualification issue twice in arbitration, and both time the JAMS National Arbitration Panel – not the arbitrator – denied IRE's motion to disqualify. (Kennedy Decl., ¶¶ 21-22.) The Panel found, in relevant part:

The arbitrator's alleged rental of a home to four nonparty individuals who appear to have no involvement in the issues related to this arbitration, constitutes little to no materiality under the present circumstances. The totality of the evidence presented in the parties' submissions does not give rise to justifiable doubt as to the arbitrator's impartiality, independence, or competence. Nor does the NAC find failure to disclose by the arbitrator.

(Kennedy

Decl., ¶ 22, Ex. Q.)

Upon review of the record, this Court does not find the arbitrator failed to timely disclose a ground for

disqualification or otherwise disqualify herself. Petitioners do not provide evidence showing that the tangential relationship between the arbitrator and individuals who were not parties or witnesses in the arbitration would cause a person to “reasonably entertain a doubt” that the arbitrator was impartial. (See CCP § 1281.9(a).) The arbitration itself concerned legal malpractice allegedly committed by Petitioners’ former lawyers, not any liability associated with the parties to the underlying copyright suit.

The parties dispute whether the conclusions reached by JAMS’ National Arbitration Panel should be given the same deference afforded to arbitrators, i.e., the decision should not be overturned unless a basis exists under CCP § 1286 (see, e.g., RK Resp. at p. 13), or if that decision should be reviewed by the Court de novo. The Court does not have sufficient information regarding whether the National Arbitration Panel’s procedures should be deemed to be equivalent to those of the arbitrator, and thus does not adopt the conclusions of the NAP without further review. The Court concludes that the suggested relationship by the arbitrator with individuals in the entertainment industry was at best attenuated, superficial, and immaterial to the arbitration. As such, the arbitrator did not have reason to disqualify, and her failure to disqualify is not a basis to vacate the arbitration award.

2. Reasonable Impression of Bias – CCP § 1286.2(a)(3)

Second, Petitioners argue that the Court should vacate the arbitration award because the arbitrator’s nondisclosure of the alleged conflict created a reasonable impression of bias. They contend that this bias amounts to “misconduct” that substantially prejudiced Petitioners’ rights in the arbitration under CCP § 1286.2(a)(3).

As

discussed above, the Court does not find that the arbitrator’s nondisclosure was improper, nor that Petitioners provided evidence showing a reasonable person would doubt the arbitrator’s impartiality. Nor do Petitioners meet their evidentiary burden that they did not receive a fair hearing. Petitioners merely assert, in a conclusory manner and without identifying specific unfairness tied to the nondisclosure, that any nondisclosure denied them of “a fundamentally fair proceeding before a neutral.” (Pet. to Vacate, at p. 12.) This is insufficient. Petitioners fail to meet their burden to show that they suffered substantial prejudice because of the arbitrator’s nondisclosure.

3. Denial of Fair Opportunity to Present Evidence – CCP

§ 1286.2(a)(5)

Third, Petitioners argue that their rights were substantially prejudiced by the arbitrator's refusal to hear evidence material to the case. Courts shall vacate an award if "[t]he rights of the party were substantially prejudiced ... by the refusal of the arbitrators to hear evidence material to the controversy." (CCP § 1286.2(a)(5).)

Petitioners explain that Kennedy was added to the arbitration to determine his liability for any fee award after the proceeding had already been pending for 15 months. (Pet. to Vacate, at p.15.) Petitioners point to various circumstances to support their argument that the arbitrator failed to hear material evidence: (1) Kennedy was ordered to participate in discovery before his jurisdictional Rule 11(b) objection was decided; (2) Kennedy appeared after the hearing date and discovery limits were already set; and (3) the arbitrator suspended IRE's depositions of Respondents' witnesses.

Nothing

in the record demonstrates that any of these discrete events denied IRE or Kennedy a fair opportunity to present evidence that substantially prejudiced their rights. According to the arbitrator's final award, Kennedy filed his Rule 11(b) motion to dismiss on November 25, 2025, and the arbitrator decided the motion on December 8, 2025. (Kennedy Decl., Ex. A, at p. 5.) IRE fails to show how this 13-day period impacted any right to discover or introduce evidence, much less resulted in substantial prejudice. Petitioners do not indicate that Kennedy sought discovery that was precluded based on the timing of his entry into the case. Further, Kennedy was Petitioners' sole witness, so he would have testified regardless of whether he was a party or when he became a party.

The

parties all report that they agreed to take three depositions, of Kennedy and Respondents' witnesses Arenz and Osher. Kennedy did not appear for his deposition, so Petitioners agreed not to proceed with the depositions of Arenz or Osher. (Silberfeld Decl., Ex. M.) Respondents successfully moved to have Kennedy ordered to appear for his deposition, which he did. Respondents assert – and Petitioners do not dispute – that Petitioners never asked to put the Arenz and Osher depositions back on calendar at any time prior to the arbitration hearing. (See BOL Resp., at p. 15; RK Resp., at p. 6; Kennedy

Decl., ¶ 15.)

These facts contradict Petitioners' suggestion that the arbitrator suspended the depositions of Respondents' witnesses. Critically, Petitioners never called Arenz or Osher to testify at the arbitration, where presumably they could have inquired about all matters that they would have covered at their depositions. Petitioners apparently determined that those witnesses were not necessary for their case in chief, so there was no prejudice associated with Petitioners' decision not to depose them before the arbitration hearing.

In addition, Section 1286.2(a)(5) provides that "the court shall vacate the award if ... "[t]he rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy." (CCP § 1286.2(a)(5).)

While IRE argues that the arbitrator improperly failed to continue the evidentiary hearing, it presents no evidence as to whether it presented good cause to continue the hearing in the first place, nor how the arbitrator's denial of said continuance request was prejudicial. The record shows that Kennedy requested a continuance of the hearing on December 15, 2025. (Garbacz Decl., ¶ 30.) The arbitrator denied the request on December 18. (Ibid.) One month later, the arbitration proceeded and Kennedy was Petitioners' sole witness. There was no suggestion that Kennedy needed additional time to find information to support his own testimony. Nor was there any evidence, or even a suggestion, that Petitioners had other witnesses who were not available to testify during the two days allocated for the arbitration, that an expert witnesses needed additional time to complete an analysis, or that another reason existed to postpone the arbitration. The Court cannot rule now, on this record, that the arbitrator improperly denied a continuance.

4. Arbitrator Exceeded Authority – CCP § 1286.2(a)(4)

Lastly, IRE argues that the arbitrator exceeded her authority by adding Kennedy as an individual party to the proceeding. Under CCP § 1286.2(a)(4), courts must vacate an award when "[t]he arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted."

There

is insufficient evidence in the record showing that Kennedy's addition was improper. By all accounts, Kennedy was always IRE's principal and most important witness who had always planned to testify at the arbitration. His involvement in the case was requested by BOR only because, as a party to the engagement agreement with BOL, he was jointly liable for fees incurred arising from a dispute under that agreement. IRE does not show how Kennedy's addition to the proceedings resulted in any prejudice, much less substantial prejudice. Under the facts presented here, the mere fact that Kennedy was found liable – following an evidentiary hearing where he testified – for BOL's fees incurred in defending the arbitration does not constitute substantial prejudice.

Petitioners

also suggest that the arbitrator failed to present unspecified “evidentiary boundaries,” which in some fashion caused prejudice. (Pet. to Vacate, at p. 12 [IRE had requested evidentiary boundaries “regarding mediation privilege and confidentiality restrictions.”].) Petitioners do not clarify what boundaries were sought, or when. Further, and more importantly, Petitioners present no evidence that they sought to introduce any evidence that may have touched on or exceeded these unspecified “boundaries,” or that they received a ruling that any evidence they sought to introduce could not be admitted because it exceeded such a “boundary.” Petitioners fail to meet their burden of proof.

Petition

to Confirm Award

Respondents'

petitions to confirm the arbitration award meets all requirements. Respondents show valid grounds to confirm the arbitration award.

Disposition

Petitioners

Irish Rover Entertainment, LLC and Jeffrey Kennedy's motion to vacate the arbitration award is denied.

Respondents'

petitions to confirm arbitration award are granted.

The final award issued by arbitrator

Hon. Elizabeth White (Ret.) is
hereby confirmed. The Court
will sign and enter the proposed judgment submitted on June 22, 2026 by BOL.

Petitioners

Irish Rover Entertainment, LLC and Jeffrey Kennedy's Motion to Seal

Petitioners

Irish Rover Entertainment, LLC and Jeffrey Kennedy move to seal their petition
to vacate arbitration award, the declaration of Kennedy, and supporting
exhibits A through AO.

California Rules of Court, rule 2.550(d)
provides:

A

court may order that a record be filed under seal only if it expressly finds
facts that establish:

- (1) There exists an overriding interest that
overcomes the right of public access to the record;
- (2) The overriding interest supports sealing
the record;
- (3) A substantial probability exists that the
overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored;
and
- (5)
No less restrictive means exist to achieve the overriding interest.

Petitioners do not meet any of the elements
under California Rules of Court, rule 2.550(d). Their motion to seal vaguely argues
that the petition and all supporting exhibits "necessarily disclose[]
settlement terms and conditions protected under express confidentiality
provisions in the August 2023 Settlement Agreement." (Motion, at p. 1.)
However, it is unclear to the Court how the entirety of Petitioner's filing,

which includes a 15-page petition to vacate an arbitration award, a 10-page declaration from Kennedy, and 39 exhibits comprising hundreds of pages reveal terms of the parties' settlement agreement. Petitioners do not specify where any such terms are revealed. Indeed, the settlement terms were irrelevant to whether the arbitration award should be confirmed or vacated, so there was no reason to include those terms in the papers supporting the motion.

Petitioners

also do not show how a substantial probability exists that their interests will be prejudiced if the record is not sealed. The supporting declaration asserts, "Based on my review of the Settlement Agreement and related arbitration materials, disclosure of the confidential information contained in the Petition and supporting materials would create a substantial risk of violating the parties' contractual confidentiality obligations." (Yeretsian Decl., ¶ 7.) A court may deny a motion to seal if it finds the supporting "declarations conclusory or otherwise unpersuasive." (In re Providian Credit Card Cases (2002) 96 Cal.App.4th 292, 301.) Neither Kennedy nor his counsel point to any exhibit or filing that reveals terms of the underlying settlement.

Moreover,

the proposed sealing is far from narrowly tailored. Petitioners move to seal all documents related to their petition—not simply the redacted portions of the documents already in the public record. Counsel for Petitioners declares, "I have considered whether less restrictive alternatives to sealing exist. However, because the confidential settlement information is intertwined with the factual allegations and procedural history underlying the Petition, redaction alone would not adequately protect the confidentiality interests at issue or would render the filings substantially unintelligible." (Yeretsian Decl., ¶ 11.) If "confidential settlement information" is in fact "intertwined" with materials that were filed, there is no reason why redaction alone, as was already performed by Petitioners, would not suffice.

Even

if Petitioners actually seek only to seal the redacted portions of the documents, their request is still not narrowly tailored. As Respondents point out in their limited opposition, many of the redactions omit information that is publicly available online, such as information contained in public LinkedIn and IMDB profiles. Petitioners make no argument concerning why sealing of this public material is necessary or warranted.

Disposition

On this record, the Court cannot make the five express findings required under California Rules of Court, rule 2.550(d) to support sealing. Thus, Petitioners' motion to seal is denied.

Under California Rules of Court, rule 2.551(b)(6), the moving party has two options after the court denies a motion to seal. First, Petitioners may notify the Court within 10 days that it chooses for the unredacted records to be filed unsealed. (Ibid.) Second, if Petitioners do nothing within 10 days, the Court will return the paper copies of the lodged records and delete any digital copies. (Ibid.) The redacted versions of the records will remain in the court's public file.